IN THE HIGH COURT OF ORISSA AT CUTTACK

CRLREV No.914 of 2025

CNR No. ODHC010827892025

Arun Kumar Singh Samanta …. **Appellant**

Mr. H.N. Mohapatra Advocate

-Versus-

Collector & District Magistrate, Angul & others …. **Respondents**

Mr. S.B.Panda, ASC

Ms. S. Priyadarsini, Advocate
for O.P.No.5

CORAM:
MR. JUSTICE R.K. PATTANAIK

ORDER
18.08.2026

Order No.

07. 1. Heard learned counsel for the respective parties.

2. Instant revision is filed by the petitioner assailing the impugned order dated 13th November, 2025 as at Annexure-3 passed in connection with CMC No.38 of 2025 by the learned Sub-Collector-cum-Sub-Divisional Magistrate, Athmallik on the grounds inter alia that the same illegal and beyond jurisdiction and therefore, is liable to be set at naught and quashed.

3. Mr. Mohapatra, learned counsel for the petitioner would submit that the initiation of the proceeding in the CMC by the Authority concerned is not in accordance with law. It is further submitted that no any proceeding has been initiated under Section 163 BNSS or for that matter under Section 164 BNSS but there has been attachment in terms of Section 165 BNSS and

therefore, the impugned order as at Annexure-3 is liable to be interfered with and set aside. The submission is that the petitioner had entered appearance in the CMC as made to reveal from Annexure-2 and the proceeding was fixed to 19th November, 2025 but it was preponed and was followed by the impugned order dated 13th November, 2025 directing attachment under Section 165(1) BNSS. The further submission is that the claim of the petitioner has not been taken into account by the learned court below while directing attachment and appointing a receiver to oversee the harvest, storage and division of the produce. The claim is that the petitioner is in possession of the case land. Mr. Mohapatra, learned counsel would submit that such possession by the petitioner is even admitted by opposite party No.5. Considering the fact that the possession is with the petitioner, as further submitted by Mr. Mohapatra, learned counsel, the action initiated with the attachment under Section 165(1) BNSS is wholly illegal.

4. In course of hearing it is brought to the notice of the Court that the second appeal of the year 2024 is pending disposal before this Court as against the suit in C.S. No. 91 of 2017 instituted by opposite party No.5.

5. The plea of the petitioner is that he is in possession of the land in question in respect of which the civil dispute has been raised and pending in second appeal and in so far as the proceeding under Section 165 BNSS is concerned, it could not have been directed by opposite party No.2. The challenge to the impugned order i.e. Annexure-3 is based on absence of a jurisdiction to direct attachment under Section 165 BNSS in

absence of any such proceeding under Section 164 BNSS. Even the maintainability of the action in view of the appeal pending before this Court is also pleaded by the petitioner.

6. Ms. Priyadarsini, learned counsel for opposite party No.5, on the other hand, submits that the case land is in forcible occupation of the petitioner and he has appropriated all the harvested crop taking advantage of the interim order dated 18th November, 2025 of this Court. The submission is that on the grievance of opposite party No.5, such a proceeding is initiated and it is on the strength of an application i.e. Annexure-1/B, wherein, opposite party No.1 directed for an enquiry and action in terms of Section 165 BNSS. It is claimed that necessary reports were called for and thereafter, on a subjective satisfaction as to existence of a breach of peace between the parties, the attachment was directed by opposite party No.2 but it has been disobeyed handing over the entire produce to the petitioner. In response to the submission of Mr. Mohapatra, learned counsel that attachment under Section 165 BNSS is not permitted unless there is a proceeding under Section 164 BNSS, it is argued by Ms. Priyadarsini, learned counsel that the same is permissible provided there is a report received by the Authority concerned regarding rival claims and dispute over a property with the existence of breach of peace in the locality and therefore, the impugned order at Annexure-3 is perfectly justified and in accordance with law.

7. Recorded the submission of Mr. Panda, learned ASC for the State and according to him, the impugned action is under Section 165 BNSS upon a satisfaction about breach of peace

hence has been followed by the order of attachment vide Annexure-3.

8. From Annexure-1/B, it is made to understand that a grievance petition was addressed to opposite party No.1 and therein, with an endorsement, it was directed that the Authority concerned, namely, opposite party No.2 may proceed under Section 165 BNSS and thereafter, the subsequent events followed with the passing of the impugned order (Annexure-3), whereby a receiver was appointed to oversee the harvest, storage and division of the produce (with 1/4th share to the petitioner and balance to the opposite party subject to final civil adjudication). It was also directed therein that the receiver shall submit a compliance report within seven days therefrom including details of the yield and division. This Court finds that spot visit has been made to confirm the claim of opposite party No.5 and thereafter, the order of attachment has been directed. It has been the claim of the petitioner that he is in possession of the case land and hence is entitled to the harvested crop.

9. As to the maintainability of the action with the attachment under Section 165(1) BNSS, this Court is in agreement with Mr. Mohapatra, learned counsel that the same is permissible provided an action under Section 164 BNSS has been initiated. For better appreciation, this Court is inclined to reproduce the relevant provision of Section 165 BNSS and the same is extracted hereinbelow:

> "165. Power to attach subject of dispute and to appoint receiver- (1) If the Magistrate at any time after making the order under sub-section (1) of

> section 164 considers the case to be one of emergency, or if he decides that none of the parties was then in such possession as is referred to in section 164, or if he is unable to satisfy himself as to which of them was then in such possession of the subject of dispute, he may attach the subject of dispute until a competent Court has determined the rights of the parties thereto with regard to the person entitled to the possession thereof:
>
> Provided that such Magistrate may withdraw the attachment at any time if he is satisfied that there is no longer any likelihood of breach of the peace with regard to the subject of dispute."

On a bare reading of the above provision, it is clear and conspicuous that any such attachment under Section 165 BNSS may be directed provided the Magistrate, after making the order under Section 164(1) BNSS, considers the case to be one of emergency or if he decides that none of the parties was then in such possession as he is referred to therein or if he is unable to satisfy himself as to which of them was in such possession of the subject of dispute. In other words, only upon fulfillment of the conditions enumerated therein the provision, the Magistrate shall have the powers to attach the subject in dispute until a competent Court determines the rights of the parties.

10. In the case at hand, upon receiving the application from opposite party No.5 as per Annexure-B, there has been a direction for an action under Section 165 BNSS. Upon receiving such a direction, opposite party No.2 has proceeded with initiation of the proceeding under Section 163 BNSS but interestingly, the said proceeding is not converted to one under

Section 164 BNSS before considering the attachment of the harvested crop with appointment of a receiver. The law is very clear to the effect that any such attachment shall have to be preceded by a decision of the Magistrate under Section 164(1) BNSS. This Court finds that no such exercise has been undertaken by opposite party No.2 before directing attachment and appointment of the receiver.

11. Mr. Mohapatra, learned counsel for the petitioner relies a decision of the Apex Court in **Mathuralal Vrs. Bhanwarilal & another (1979) 4 SCC 665** to contend that any such action may be initiated subject to satisfaction of the essential conditions of Sections 163 & 164 BNSS. In the decision (supra), the Apex Court held and observed as under:

> "4. Quite obviously, Sections 145 and 146 of the Criminal Procedure Code together constitute a scheme for the resolution of a situation where there is a likelihood of a breach of the peace because of a dispute concerning any land or water or their boundaries. If Section 146 is torn out of its setting and read independently of Section 145, it is capable of being construed to mean that once an attachment is effected in any of the three situations mentioned therein, the dispute can only be resolved by a competent Court and not by the Magistrate effecting the attachment. But Section 146 cannot be so separated from Section 145. It can only be read in the context of Section 145. Contextual construction must surely prevail over isolationist construction. Otherwise, it may mislead. That is one of the first principles of construction. Let us therefore look at Section 145 and consider Section 146 in that context. Section 145 contemplates, first, the

satisfaction of the Magistrate that a dispute likely to cause a breach of the peace exists concerning any land or water or their boundaries, and, next, the issuance of an order, known to lawyers practicing in the criminal courts as a preliminary order, stating the grounds of his satisfaction and requiring the parties concerned to attend his Court and to put in written statements of their respective claims as regards the fact of actual possession of the subject of dispute. A preliminary order is considered so basic to a proceeding under Section 145 that a failure to draw up a preliminary order has been held by several High Courts to vitiate all the subsequent proceedings. It is by making a preliminary order that the Magistrate assumes jurisdiction to proceed under Sections 145 and 146. In fact, the first of the situations in which an attachment may be effected under Section 146 of the 1973 Code has to be "at any time after making the order under sub-section (1) of Section 145" while the other two situations have, necessarily, to be at the final stage of the proceeding initiated by the preliminary order. Now, the preliminary order is required to enjoin the parties not only to appear before the Magistrate on a specified date but also to put in their written statements. Sub-section (3) of Section 145 prescribes the mode of service of the preliminary order on the parties. Sub-section (4) casts a duty on the Magistrate to peruse the written statements of the parties, to receive the evidence adduced by them, to take further evidence if necessary and, if possible, to decide which of the parties was in possession on the date of the preliminary order. If the Magistrate decides that one of the parties was in possession, he is to make a final order in the manner provided by sub-section (6). Provision for the two situations where the Magistrate is unable to decide which of the parties

was in possession or where he is of the view that neither of them was in possession is made in Section 146 under which he may attach the subject of dispute until the determination of the rights of parties by a competent court. The scheme of Sections 145 and 146 is that the Magistrate, on being satisfied about the existence of a dispute likely to cause a breach of the peace, issues a preliminary order stating the grounds of his satisfaction and calling upon the parties to appear before him and submit their written statements. Then he proceeds to peruse the statements, to receive and to take evidence and to decide which of the parties was in possession on the date of the preliminary order. On the other hand, if he is unable to decide who was in such possession or if he is of the view that none of the parties was in such possession he may say so. If he decides that one of the parties was in possession, he declares the possession of such party. In the other two situations he attaches the property. Thus, a proceeding begun with a preliminary order must be followed up by an enquiry and end with the Magistrate deciding in one of three ways and making consequential orders. There is no half way house, there is no question of stopping in the middle and leaving the parties to go to the Civil Court. Proceeding may however be stopped at any time if one or other of the parties satisfies the Magistrate that there has never been or there is no longer any dispute likely to cause a breach of the peace. If there is no dispute likely to cause a breach of the peace, the foundation for the jurisdiction of the Magistrate disappears. The Magistrate then cancels the preliminary order. This is provided by Section 145, sub-section (5). Except for the reason that there is no dispute likely to cause a breach of the peace and as provided by Section 145(5), a proceeding initiated by a preliminary order

under Section 145(1) must run its full course. Now, in a case of emergency, a Magistrate may attach the property, at any time after making the preliminary order. This is the first of the situations provided in Section 146(1) in which an attachment may be effected. There is no express stipulation in Section 146 that the jurisdiction of the Magistrate ends with the attachment. Nor is it implied. Far from it. The obligation to proceed with the enquiry as prescribed by Section 145, sub-section (4) is against any such implication. Suppose a Magistrate draws up a preliminary order under Section 145(1) and immediately follows it up with an attachment under Section 146(1), the whole exercise of stating the grounds of his satisfaction and calling upon the parties to appear before him and submit their written statements become futile if he is to have no further jurisdiction in the matter. And yet he cannot make an order of attachment under Section 146(1) on the ground of emergency without first making a preliminary order in the manner prescribed by Section 145(1). There is no reason why we should adopt a construction which will lead to such inevitable contradictions. We mentioned a little earlier that the only provision for stopping the proceeding and cancelling the preliminary order is to found in Section 145(5) and it can only be on the ground that there is no longer any dispute likely to cause a breach of the peace. An emergency is the basis of attachment under the first limb of Section 146(1) and if there is an emergency, none can say that there is no dispute likely to cause a breach of the peace."

12. Ms. Priyadarsini, learned counsel for opposite party No.5 relies on the following decisions, such as, **Ashok Kumar Vrs. State of Uttarakhand (2013)3 SCC 366**; **State of Orissa**

Vrs. Ganeshjew Mahapravu AIR 1986 Ori 134; **High Court Bar Association, Allahabad-Vrs. State of Uttar Pradesh & others 2024 INSC 150**; **Subala Dehury Vrs. Rupakar Dehury (1986)1 OLR 154**; **Kuber Pradhan Vrs. Chaturbhuja Kuar 36(1970) CLT 689**; **Ram Sumer Puri Mahant Vrs. State of U.P. AIR 1985 SC 472**; **Manika Sahu and Others Vrs. Dandapani Sahu and Others 1976 SCC OnLine Ori 100**; and **Dandapani Pala & Others Vrs. Madan Mohan Pala** and **Others 1985 SCC OnLine Ori 270**. The submission is that in case of an emergent situation, a Magistrate has powers to take action under Section 165 BNSS without a proceeding under Section 164 BNSS initiated if upon receiving a report about existence of a breach of peace and to direct attachment and also has the jurisdiction to appoint a receiver. But considering the case laws cited (supra), this Court finds that a proceeding under Section 145 Cr.P.C. is initiated and therein, the attachment has been directed in terms of Section 146 Cr.P.C. It is not that the Magistrate can directly to usurp jurisdiction under Section 165 BNSS without initiating a proceeding under Section 164 BNSS. The law is emphasized by the Apex Court time and again in a catena of decisions. In view of the discussions hereinabove, this Court is of irresistible conclusion that opposite party No.2 without any such proceeding initiated under Section 164 BNSS and exercise of jurisdiction under Section 165 (1) BNSS directed attachment of the crop which is unknown to the scheme of the law and not even contemplated thereunder and therefore, the same is liable to be interfered with and quashed.

13. Accordingly, it is ordered.

14. In the result, the revision stands allowed. As a necessary corollary, the impugned order dated 13th November, 2025 as at Annexure-3 by opposite party No.2 is hereby set aside and quashed for the reasons discussed hereinabove.

15. In the circumstances, there is no order as to costs.

(R.K. Pattanaik)
Judge

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